

2:00 PM LINE 6

23-CIV-00365

MARGARET FRIED VS. GOPI MATTEL

MARARET FRIED
GOPI MATTEL

JEFFREY A. FELDMAN
PRO SE

Defendant Gopi Mattel's Motion to Compel Compliance with Deposition Subpoena; and Opposition to Non-Parties' Request for Monetary Sanctions

TENTATIVE RULING:

Initially, the Court notes defendant provided the improper address for the hearing because the matter was reassigned to the Honorable David A. Silberman, Department 11, effective May 11, 2026. Department 11 is located at the Central Branch Courthouse, Courtroom G, 800 North Humboldt Street, San Mateo, CA 94401. (See Cal. Rules of Court, rule 3.1110 [the Notice "must specify" the location of the hearing].) The Court notes the most recent filings associated with the instant motion have corrected the judicial officer and location in the caption therefore the Court finds the error harmless.

Defendant Gopi Mattel's motion to compel compliance of non-parties Aria Khalili and his company, Paria LLC ("Pariax") with a deposition subpoena for personal appearance and production of documents and things issued by this Court on September 3, 2025 was withdrawn by defendant on August 11, 2026.

However, Non-parties Pariax LLC's and Aria Khalili opposed the motion, requested sanctions pursuant to Code and continues to pursue them. That request is DENIED. The trial court is required to award monetary sanctions against any person "who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.480, subd. (j), italics added.) This section does not provide a statutory basis to order sanctions because the motion was withdrawn. That is also true of Code of Civil Procedure Section 2023.010(h). The Court would have authority to award sanctions under Section 2023.030(a) in the abstract, but it does not conclude based on the showing made that Defendant was engaged in the misuse of the discovery process. It appears that Defendant was pursuing discovery that he believed was appropriate, but that he did it in an inept way. And as a consequence, he is now foreclosed from pursuing the evidence in discovery.

The Court is not condoning Defendant's conduct. In addition to the inept and discourteous way in which he pursued the discovery, the fact that it resulted in a continuance of the trial and his failure to respond to Pariax's attempts to resolve the dispute, the Court notes with particular concern Defendant's acknowledged mis-citation of legal authority for his underlying motion and his statement that he has "adopted a practice of independently verifying every legal authority before filing." (Declaration of Gopi Mattel iso motion to withdraw filed August 11, 2026, ¶ 5.) This is a requirement, not a practice to adopt: legal standards require that courts apply the rules of practice and procedure equally to self-represented litigants and represented litigants alike. (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985 [a party's election to act as his own attorney does not entitle him to lenience as to the rules of practice and procedure].)

The Court also notes, with appreciation, the diligent meet and confer attempts counsel Miller attempted with Defendant Mattel in effort to avoid court intervention. (Declaration of Donald A. Miller in opposition to motion to compel filed August 4, 2026, ¶¶ 7-12.).

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

**UD LAW AND MOTION CALENDAR
MONDAY, AUGUST 17, 2026**

2:00 PM **LINE 7**

26-UDL-00685 LEE & LUM REAL ESTATE, LLC VS. ALOK ARORA, ET AL

LEE & LUM REAL ESTATE, LLC
ALOK ARORA

MICHAEL J. MCLAUGHLIN
ANTHONY F. VENTURA

Defendant Alok Arora, DMD's Motion to Consolidate Related Actions Pursuant to Code of Civil Procedure 1048, 403, and 404.1; or, in the Alternative, to Stay Unlawful Detainer Action No. 26-UDL-00685

TENTATIVE RULING:

Initially, the Court notes that Defendant has not provided the address for the hearing. Department 11 is located at 800 North Humboldt Street, San Mateo, CA 94401, Courtroom G. (*See* Cal. Rules of Court, rule 3.1110 [the Notice "must specify" the location of the hearing].)

The unopposed Motion to Consolidate Related Actions (the "Motion") brought by Defendant Alok Arora, DMD is GRANTED.

Plaintiff alleges that on or about August 1, 2015, it leased the commercial premises at 695 Oak Grove Avenue, Suite 300, Menlo Park, California 94025 (the "Premises") to Defendant for a ten-year term pursuant to a lease (Complaint, Exh. 1 (the "Lease")), the first option to extend for five years of which Defendant exercised as of August 1, 2025. The Lease requires Defendant to maintain commercial general liability insurance.

Plaintiff further alleges that on or about October 2, 2025, the Premises suffered water intrusion. Plaintiff asked Defendant to file a claim for compensation for damages flowing therefrom with his commercial general liability insurer, but Defendant refused, so Plaintiff did so as an additional insured. The insurer denied coverage because Defendant's policy excluded property rented by Defendant, such as the Premises.

Per allegations, Defendant's failure to have maintained the commercial general liability insurance required by the Lease constitutes a material default thereof. Plaintiff served upon Defendant a Thirty-Day Notice of Default on April 3, 2026, but Defendant failed to comply with its requirement by the time it expired. Plaintiff served Defendant with a Three-Day Notice to Cure Covenant(s) or Quit on May 11, 2026, with which Defendant failed to comply by the time it expired, and Defendant continues in

possession of the Premises without Plaintiff's permission. The latter notice included an election of forfeiture.

Through its Motion to Consolidate Related Actions (the "Motion"), Defendant seeks to consolidate for all purposes a civil action in which the parties are reversed (Case No. 26-CIV-05047 (the "Civil Case")) with the instant (the "UDL Case").

Consolidation is a procedure for uniting separate lawsuits for trial, where the cases are pending in the same court and involve common questions of law or fact. (Code Civ. Proc., § 1048, subd. (a).) The purpose of consolidation is to enhance trial-court efficiency by avoiding duplication of evidence and procedures, and to avoid the substantial danger of inconsistent adjudications as a result of trying the same issues before different factfinders. The Court considers whether the cases to be consolidated have common issues, and whether undue confusion or prejudice likely would result from consolidation. (*Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 979 (*Todd-Stenberg*).) "The trial court's decision will not be disturbed on appeal absent a clear showing of abuse of discretion." (*Todd-Stenberg, supra*, 48 Cal.App.4th 976, 978-79.)

The Court finds consolidation to be appropriate on the following grounds:

1. Plaintiff and Defendant are the only parties to the Civil Case, and both are the only parties to the instant action. (Chhabria Decl., ¶ 4.)
2. The two cases involve the same Lease, the parties' same decade-long course of dealing regarding its insurance covenant, and the same two notices, as well as common questions of law and fact, such as whether Defendant's insurance coverage satisfied paragraph 7.1 of the Lease. (*See id.*, ¶¶ 4 & 6.) Accordingly, discovery, motion practice, and trial all will involve overlapping legal and factual issues, documents, witnesses, testimony, and evidence.
3. Defendant would be prejudiced if he were not afforded a full opportunity to litigate his claims and defenses before their foreclosure by the summary UDL Case, but consolidation would not prejudice Plaintiff, which continues to hold and manage the Premises. In particular, Defendant's theories of mistake, waiver, impossibility, and estoppel cannot be resolved within the summary UDL Case in the same manner in which they can be in the civil action. The UDL Case is not one in which rent is overdue (in fact, Defendant asserts that Plaintiff rejected his June 2026 tender of rent), nor one of holdover (since four years of the Lease term remain). Instead, the following complex issues of contract and equity are here disputed:

whether a specific insurance covenant, as Plaintiff now construes it, is even capable of performance, whether Plaintiff's own course of conduct modified or waived that covenant, and whether the entire default theory was manufactured to defeat Defendant's right of first refusal.

(Memorandum of Points and Authorities in Support of Motion, 7:20-23.) Accordingly, the Court has the power and the obligation to consolidate the two cases.

4. Consolidation of the two cases would promote judicial economy and fairness, and avoid inconsistent findings, rulings, orders, and judgments. Further, consolidation would not confuse a
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jury. “Actions may be consolidated, in the discretion of the court, whenever it can be done without prejudice to a substantial right.” (*State Farm, supra*, 47 Cal.2d 428, 430 (quotation omitted).)

This Court already has ordered the cases “related,” finding that:

Each of these cases involves Lee & Lum Real Estate’s lease with Alok Arora, DMD and whether that lease was breached in relation to an insurance provision. The Court therefore finds that under California Rules of Court, Rule 3.300 the cases are “related.”

(Order Deeming Cases Related, filed on June 25, 2026 (the “Order”).)

The Court may consolidate cases completely, or partially for trial only. (Code Civ. Proc., § 1048, subd. (a).) Defendant requests complete consolidation into the Civil Case, because the Civil Case is already an unlimited civil action that encompasses all of the issues between the parties, while the UDL Case is limited to the single question of possession. The Court has discretion to designate the lead case: “Unless otherwise provided in the order granting the motion to consolidate, the lowest numbered case in the consolidated case is the lead case.” (Cal. Rules of Ct., rule 3.350(b).)

For all of these reasons, the Court GRANTS the Motion to consolidate the proposed cases for all purposes. The Civil Case shall be the lead case.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.
